

**SUPERIOR COURT OF CALIFORNIA
COUNTY OF MERCED**

627 W. 21st Street, Merced
1159 G Street, Los Banos

Monday, March 20, 2023

NOTE: Merced Superior Court will no longer be consolidating Courtroom 8 and Courtroom 10.

Tentative Rulings are provided for the following Courtrooms and assigned Judicial Officers with scheduled civil matters:

Courtroom 2 – Hon. Stephanie L. Jamieson

Courtroom 8 – Hon. Brian L. McCabe

Courtroom 9 – Judge Pro Tem Monika Donabed

Courtroom 12 – Hon. Jennifer O. Trimble

Courtroom 10 will continue to post separate Probate Notes that are not included in these tentative rulings.

IMPORTANT: Court Reporters will NOT be provided; parties wanting a hearing transcript must make their own arrangements. Electronic recording is available in certain courtrooms and will only be activated upon request.

The specific tentative rulings for specific civil calendars follow:

SUPERIOR COURT OF CALIFORNIA
COUNTY OF MERCED

Civil Law and Motion
Hon. Brian L. McCabe
Courtroom 8
627 W. 21st Street, Merced

Monday, March 20, 2023
8:15 a.m.

The following tentative rulings shall become the ruling of the court unless a party gives notice of intention to appear as follows:

1. You must call (209) 725-4111 to notify the court of your intent to appear.
2. You must give notice to all other parties before 4:00 p.m. of your intent to appear.

Per California Rules of Court, rule 3.1308(a)(1), failure to do both items 1 and 2 will result in no oral argument. **To limit the spread of the COVID-19 virus, the court encourages remote hearings. Parties who contest the tentative ruling or wish to appear at a hearing must contact the clerk of the court at (209) 725-4111 to provide their contact information for the remote hearing.**

IMPORTANT: Court Reporters will NOT be provided; parties wanting a hearing transcript must make their own arrangements.

Case No.	Title / Description
----------	---------------------

18CV-04557	Othella Jones, et al. v. Apple Inc.
------------	-------------------------------------

Order to Show Cause Re: Dismissal – Notice of Settlement

Appearance required. Remote appearances are encouraged. Parties who wish to appear remotely should contact the clerk of the court at (209) 725-4111 to provide their contact information for the remote hearing. The Court notes a Notice of Settlement Pursuant to CRC Rule 3.1385 was filed on February 3, 2023, indicating that Plaintiff would be filing a motion for approval with the Court forthwith. To date, a motion for approval has not been filed. Appear to update the Court on the status of the settlement.

19CV-05204	Gloria Rosado v. Walmart, Inc.
------------	--------------------------------

Status Conference

Appearance required. Remote appearances are strongly encouraged. To arrange a remote appearance, contact the clerk of the court at (209) 725-4111 to provide their contact information for the remote hearing. Appear to update the Court on the status of settlement.
